

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Crl. Appeal No.43135-J of 2021
(Muhammad Imran Sajid *versus* The State, etc.)

Crl. Rev. No.58952 of 2021
(Abdul Kareem *versus* Muhammad Imran Sajid, etc.)

JUDGMENT

Date of hearing: 03.06.2026.

Appellant by: Mr. Faseeh Ullah Khan, Advocate.
 Ms. Uzma Razzaq Khan, Advocate (Defence counsel) for
 the appellant.

State by: Ms. Maida Sobia, Deputy Prosecutor General.

Complainant by: Mr. Usama Mir, Advocate.

AALIA NEELUM, C.J: Muhammad Imran Sajid, son of Khadim Hussain, Caste Butt, resident of Basti Sailab Abad, Post Office, Tibba Rao Garh Chadhar, District Multan, the appellant, was involved in case F.I.R. No.340 of 2019, dated 14.11.2019, registered under Section 302 PPC, at Police Station, Ahmad Pur Sial, District Jhang, and was tried by the learned Sessions Judge, Jhang. The trial court was seized of the matter in terms of the judgment dated 18.06.2021 and convicted the appellant under section 302(b) PPC and sentenced him to undergo **imprisonment for life as Tazir** with the direction to pay Rs.5,00,000/- as compensation under section 544-A Cr.P.C. to the legal heirs of the deceased, Mst. Anwari Bibi, and in case of default in payment thereof, he would further undergo six months of S.I. The benefit of section 382-B Cr.P.C. was also extended in favour of the appellant.

2. Feeling aggrieved by the trial court's judgment, Muhammad Imran Sajid, the appellant, has assailed his conviction by filing **Crl. Appeal No.43135-J of 2021**. It is pertinent to mention here that the complainant also filed **Crl. Rev. No.58952 of 2021** qua enhancement of sentence awarded to the appellant. The matters arising from the same trial court judgment are being disposed of through a consolidated judgment.

3. The prosecution case, as alleged in the F.I.R (Ex. PE) lodged on the written complaint (Ex. PJ) of Abdul Kareem (PW-9), the complainant, is that his niece, Mst. Nadia Bibi, was married to the accused, Muhammad Imran Sajid, and no issue was born out of that wedlock. The accused, Muhammad Imran Sajid, divorced Mst. Nadia Bibi on 16.08.2019; Nadia Bibi came to her mother's house, Anwari Bibi (since dead), Bhawaj of the complainant. On 14.11.2019, the complainant (PW-9), along with Abid Majeed and Muhammad Rafique, PWs, was present in the house of Mst. Anwari Bibi and she was also present there. At about 10:30 a.m., the accused arrived while armed with a 30-bore pistol and shouted that he would teach a lesson for not sending Mst. Nadia Bibi was with him, and thereafter, the accused fired at Mst. Anwari Bibi (since dead), who was hit on her left cheek, and the bullet passed through to her right cheek. After the alleged occurrence, the accused fled. The complainant (PW-9) and PWs tried to rescue the deceased, who succumbed to injuries at the spot. The motive behind the occurrence was that the accused, Muhammad Imran Sajid, intended to take Mst. Nadia Bibi with him and to cohabit with her, against the Commands of Allah Almighty and Sharia, for which Mst. Anwari Bibi (since dead) was not ready, whereupon the alleged occurrence took place.

4. Upon receiving information about the incident, Zafar Abbas, S.I./S.H.O (PW-13), along with police officials, reached the scene. On the written application (Ex.PJ) of Abdul Kareem, the complainant (PW-9), for registration of the F.I.R., a formal F.I.R. (Ex. PE) was prepared by Manzoor Hussain 426/HC (PW-4).

5. Zafar Abbas, S.I (PW-13), initially investigated the case after registration. Thereafter, the investigation was entrusted to Muhammad Nawaz, S.I (PW-12), who, after finding the appellant guilty, prepared a report under section 173 of the Cr.P.C. and sent it to the court of competent jurisdiction. On 16.01.2020, the trial court formally charged the appellant, and he pleaded not guilty and claimed trial. In support of its version, the prosecution produced fourteen (14) witnesses.

6. After the prosecution's evidence was closed, the appellant was examined under Section 342 of the Cr.P.C., and he did not opt to appear as his witnesses under Section 340(2) of the Cr.P.C.; however, he opted to produce defence evidence. In response to a specific question about why this case was against him and why the PWs had deposed against him, the appellant made the following depositions: -

“Mst. Anwari Bibi deceased was my maternal aunt, I used to send money from Masqat, to my ex-wife Mst. Nadia Bibi and sent an amount of Rs.20-lac in total, Mst. Nadia Bibi purchased a plot for her mother from that amount, on my return to Pakistan, I used to demand return of the above said money from my ex-wife and my mother-in-law Mst. Anwari Bibi deceased for start of my business in Pakistan, both the ladies were reluctant to return that amount and the same became the reason of strained relations and ultimate divorce of Mst. Nadia Bibi my ex-wife, we were not on visiting terms, therefore, the complainant Abdul Kareem and my ex-wife Mst. Nadia Bibi involved me in this case of unseen occurrence, falsely just to avoid the return of the above said amount which I used to send to my ex-wife during my stay in Masqat, I never visited the house of my mother-in-law after the divorce. PWs are related inter-se so, they have deposed against me falsely.”

7. After recording evidence and evaluating the evidence available on record in the light of the arguments advanced by both sides, the trial court found the prosecution version proved beyond any shadow of reasonable doubt, which resulted in the appellant's conviction in the afore-stated terms.

8. I have heard the arguments advanced by the learned counsel for the parties and have minutely perused the record on the file.

9. In the present case, the occurrence took place on 14.11.2019, at about 10:30 a.m., in the house of the deceased Anwari Bibi situated in the area of Mohallah Shamsabad falling within the territorial jurisdiction of police station Ahmad Pur Sial, District Jhang, which is one furlong away from the place of occurrence. Abdul Kareem (PW-9)-the complainant admitted during cross-examination that:-

“Police Station Ahmad Pur Sial is at a distance of 01/01-1/2 furlong from the place of occurrence. ----- Police Station is about two furlongs from bus-stop.”

Abdul Kareem (PW-9), the brother-in-law of Anwari Bibi (deceased), reported the incident to Zafar Abbas, SI/S.H.O (PW-13), the investigating officer, at the place of occurrence at 10:55 a.m., on 14.11.2019, who, after incorporating the police proceedings, (Exh.PJ/3) referred the same to the police station through Muhammad Amir, 1750/C (not cited as PW), for formal registration of the FIR. On receiving the complaint (Exh.PJ), Manzoor Hussain 426/MHC (PW-4) chalked out the FIR (Exh.PE) at 11:05 a.m. on 14.11.2019. Abdul Kareem (PW-9)-the complainant deposed during his examination-in-chief that:-

“Police came at the spot where I presented application Exh.PJ to police for registration of case bearing my signatures as Exh.PJ/1 and thumb impression as Exh.PJ/2.”

During cross-examination, he (PW-9) deposed that:-

“I got scribed application Exh.PJ from a student standing outside the house, the place of occurrence, at about 11:00 a.m. I do not know as to who informed the police. PW volunteered that police had come there of its own.”

Zafar Abbas, SI/S.H.O (PW-13), deposed during examination-in-chief that upon receiving information about the incident, he, along with Muhammad Aamir 1750/C, Ali Raza 136/C, and Naseem Abbas 931/C (PW-7), went to the place of occurrence, where Abdul Kareem (PW-9), the complainant,

presented a written application to him. He (PW-13) recorded the police proceedings on the back of the application (Exh.PJ/3) and sent the complaint, through Muhammad Aamir 1750/C, to the police station for registration of the case. During cross-examination, he (PW-13) stated that he reached the place of occurrence at 10:55 a.m. During cross-examination, Zafar Abbas, SI/S.H.O (PW-13), the investigating officer, deposed that:

“Information with regard to occurrence was received at 10:30 a.m., pertaining to occurrence of 10:30 a.m. We reached at place of occurrence soon after receipt of information. 10:55 a.m. recorded in first case diary is the time of start of police proceedings. Moharar informed me about the occurrence at 10:36 a.m. ----- The complainant did not get scribe complaint Exh.PJ in my presence. PW volunteered that he only presented the complaint Exh.PJ before me.”

The police proceedings endorsed on the back of the application Exh.PJ revealed that the same was received at 10:55 a.m. on 14.11.2019. The prosecution's case is that Abdul Kareem (PW-9), the complainant, got the written complaint scribed by a student standing outside the house where the incident took place at 11:00 a.m. on 14.11.2019. As per the deposition of the above-mentioned prosecution witnesses at 11:00 a.m., Abdul Kareem (PW-9), the complainant, got scribed complaint (Exh.PJ) from a student, whereas Zafar Abbas, SI/S.H.O (PW-13), the investigating officer, deposed that the complaint (Exh.PJ) was handed over to him by Abdul Kareem (PW-9), the complainant, at the gate of the house. After receiving the complaint (Exh.PJ), he incorporated the police proceeding and, at the bottom of the complaint (Exh.PJ), he mentioned 10:55 a.m. Zafar Abbas, SI/S.H.O (PW-13), the investigating officer, deposed during cross-examination that “Complainant presented the complaint just at the gate of the house.” This raises doubts about the timing of the incident's reporting to the police. Abid Majeed (PW-10), son of the complainant and nephew of Muhammad Siddique, the late husband of Anwari Bibi, the deceased, deposed during examination-in-chief that Abdul Kareem (PW-9), the complainant, while leaving him and Muhammad Rafique (given up PW) at the spot, went to

report the matter to the police. In a short while, the police came to the spot, where he presented a complaint (Exh.PJ) to them for registration of the case. Whereas, during cross-examination, he (PW-10) admitted that:-

“I did not get record in my statement u/s 161 of Cr.P.C. that Abdul Kareem the complainant while leaving me and Muhammad Rafique PW there at the spot, went to report the matter to police, in the meanwhile police came at the spot where he presented application to police for registration of case.”

The presence of the prosecution witnesses, i.e., Abdul Kareem (PW-9), the complainant, Abid Majeed (PW-10), and Muhammad Rafique (given up PW), becomes doubtful. In the complaint (Exh.PJ), Abdul Kareem (PW-9), the complainant, mentioned that:-

آج میں معہ انوری بی بی بھاجہ ام، عابد مجید ولد عبدالمجید، محمد رفیق ولد دین محمد اقوام بٹ سکنہ
دیہہ اپنے گھر موجود تھے کہ قریب 10/30 بجے دن محمد عمران -----

Abdul Kareem (PW-9)-the complainant deposed during examination-in-chief that:-

“On 14.11.2019 at about 10:30 a.m., I was present alongwith Abid Majeed and Muhammad Rafique Pws in the house of Anwari Bibi where Anwari Bibi was also present there.”

Abid Majeed (PW-10) also deposed during his examination-in-chief in similar lines. During cross-examination, Abdul Kareem (PW-9), the complainant, admitted that:-

“I did not get record in Exh.PJ the reason of our gathering in the house of Anwari Bibi deceased. PW volunteered that Anwari Bibi, deceased, called us for discussion pertaining to the affairs of marriage of her son.”

Abid Majeed (PW-10) deposed during cross-examination that:-

“I.O. got recorded my statement. I did not get recorded in my statement u/s 161 of Cr.P.C. that we were present in the house of Chacha Abdul Kareem. (confronted with Exh.DB wherein it is so recorded vide ‘A to A’). I do not

remember as to if I got recorded in my statement u/s 161 of Cr.P.C. that as to why we were there in the house of Anwari Bibi at that time.”

The depositions of the prosecution witnesses, i.e., Abdul Kareem (PW-9), the complainant, and Abid Majeed (PW-10), raise doubts about their presence at the time and place of the occurrence. They were thus chance witnesses, as by coincidence or chance, they were present at the place of occurrence when the incident was taking place; they could not normally be where and when they profess to have been. However, if they have given reasons for their presence, then they cannot be said to be chance witnesses, and their evidence cannot be discarded on that ground. In the present case, the above-mentioned witnesses could not establish their presence at the time of the incident at the place of the occurrence. Zafar Abbas, SI/S.H.O (PW-13), the investigating officer, deposed during cross-examination that:

“I have recorded the place of occurrence as House of the complainant. PW volunteered that the house of the complainant and the place of occurrence is part of one property. It is incorrect to suggest that volunteer portion of my statement is false.”

Contrary to the deposition of Zafar Abbas, SI/S.H.O (PW-13), the investigating officer, Nadia Bibi (PW-11), the deceased's daughter and ex-wife of the accused, deposed during cross-examination that:

“Abdul Kareem PW resides in his own house, at a distance of one street from the house of my mother, in Mohallah Shamas Abad. He is my real paternal uncle. Abid Majeed is my first cousin, son of my paternal uncle Abdul Majeed.”

Admittedly, the site plan (Exh.PD) was prepared at the pointing of Abid Majeed (PW-10) and prosecution witnesses. Abid Majeed (PW-10) also admitted during cross-examination that:-

“I pointed out to I.O all the information with regard to place of occurrence at the time of preparation site plan.”

Perusal of the site plan (Exh.PD) reveals that the place of occurrence belongs to Abdul Kareem (PW-9), the complainant. Although the site plan is not a substantive piece of evidence according to Article 22 of the Qanun-e-Shahadat Order, 1984, as held in the case of “**Mst. Shamim Akhtar v. Fiaz Akhtar and two others**” (PLD 1992 SC 211), it reflects the view of the crime scene, and the same can be used to contradict or disbelieve eyewitnesses. So, the place of the occurrence becomes doubtful. This grave infirmity destroys the credibility of the witnesses' evidence. This casts serious doubt on the authenticity of the prosecution's account, including the incident's location. The prosecution also produced Nadia Bibi (PW-11), daughter of the deceased, who admitted during cross-examination that:-

“My statement was recorded by the I.O. u/s 161 of Cr.P.C. but not at the spot. I got recorded in my statement u/s 161 of Cr.P.C. that I was on roof (confronted with Exh.DA wherein it is not so recorded). After 16/17 days, my statement was recorded by the I.O. My statement u/s 161 of Cr.P.C. was recorded on 01.12.2019.”

Admittedly, after 16/17 days of the occurrence, the statement of Nadia Bibi (PW-11) was recorded. She (PW-11) deposed during her cross-examination that:-

“I did not get record in my statement u/s 161 Cr.P.C that as to why Pws Abdul Kareem, Abid Majeed and Muhammad Rafique were there with my mother in our house.”

Nadia Bibi (PW-11) deposed during her examination-in-chief that she was on the roof of her house when the incident occurred. Abdul Kareem (PW-9), the complainant, also deposed during cross-examination that:

“I submitted application Exh.PJ for registration of case. I got recorded in Exh.PJ that Mst. Nadia Bibi was on roof. (confronted with Exh.PJ where it is not so recorded).”

Nadia Bibi (PW-11) deposed that she, on hearing the noise of firing, came down and saw her mother in an injured condition. She (PW-11) deposed during her examination-in-chief that:-

“I heard the noise of firing, so I came down at once and saw my mother was in injured condition who succumbed to the injuries there and then. Abdul Kareem told me about arrival of the accused, his making of Lalkara to my mother and making of fire shot on her person resulting into her death.”

Nadia Bibi (PW-11) also admitted during cross-examination that:-

“I came to that room after five minutes of the occurrence. PW volunteered that I was on roof and came downwards after hearing the noise.”

So, Nadia Bibi (PW-11) is also not a witness to the incident, even though she has not stated a single word about hearing the voice of lalkara of Muhammad Imran Sajid (the appellant), raised by him or after the incident at the place of occurrence. On these facts, this Court is of the view that the statement of Nadia Bibi (PW-11), which was recorded by the Investigating Officer only on 01.12.2019, seventeen (17) days after the deceased's murder on 14.11.2019, was not reliable. Thus, given the peculiar facts of this case, the Investigating Officer's delay in recording the witness's statement under section 161 of the Cr.P.C. does not support the prosecution's case.

10. According to the prosecution witnesses, Anwari Bibi fell to the ground due to a firearm injury and succumbed to it at the spot. Similarly, Abdul Kareem (PW-9), the complainant, Abid Majeed (PW-10), and Nadia Bibi (PW-11) deposed during their examination-in-chief. Zafar Abbas, SI (PW-13), deposed during cross-examination that:

“The dead body was lying on ground when I reached there and when snaps were taken. I do not know as to who shifted the dead body from ground to cot.”

Abdul Kareem (PW-9)-the complainant deposed during cross-examination that:-

“Dead body of Anwari Bibi deceased was shifted on cot when it was taken to hospital after police initial inspection.”

Abid Majeed (PW-10) deposed during cross-examination that:-

“I do not know who shifted the dead body from ground to cot. Police took snaps at the spot at about 10:40/10:45 a.m.”

Nadia Bibi (PW-11) deposed during cross-examination that:-

“I do not know as to who shifted dead body of my mother on cot. I did not attend my mother at the time of occurrence.”

Zafar Abbas SI/S.H.O (PW-13)-the investigating officer prepared inquest report (Exh.PC) and in column No.3 of the inquest report (Exh.PC) relating to receiving information of date and time of death was mentioned as “14.11.2019 at 10:35 a.m.” and in column No.4, the names of the witnesses were mentioned as Muhammad Rasheed alias Nanna (PW-1) and Abdul Majeed son of Muhammad Shareef. Zafar Abbas SI/S.H.O (PW-13), the investigating officer, admitted during cross-examination that Muhammad Shareef alias Nanna and Abdul Majeed, the witnesses cited in column No.4 of the inquest report (Exh.PC), are not the witnesses of the occurrence. In the last column of the inquest report (Exh.PC), the names of Imtiaz Ahmad, son of Ejaz Ahmad, and Hassan Moaviya, son of Muhammad Riaz, were mentioned. There is no reason why the investigating officer did not mention the names of the prosecution witnesses.

It is also mentioned in the column of brief history of the inquest report that the dead body was handed over to Naseem Abbas 931/C (PW-7) and Nasreen Akhtar 1743/LC (PW-5) for postmortem examination. Zafar Abbas S.I/S.H.O (PW-13)-the investigating officer deposed during his examination-in-chief that:-

“I got inspected the dead body through Shamshad Bibi wife of Abdul Kareem upon which I prepared the injury statement Exh.PB and inquest report Exh.PC. Naseem Abbas 931/C alongwith Nasreen Akhtar 1743/LC were deputed for autopsy of the dead body from THQ Hospital Ahmad Pur Sial. ----- I arranged a vehicle for transportation of dad body to THQ Hospital Ahmad Pur Sial alongwith Pws Muhammad Rasheed alias Nanha and Abdul Majeed for identification of dead body.”

Muhammad Rasheed, alias Nanna, deposed during his examination-in-chief that on 14.11.2019, he, along with PW Abid Majeed (PW-10), identified the dead body of Mst. Anwari Bibi before the doctor in the mortuary of DHQ Hospital, Jhang. However, in column No.4 of the inquest report (Exh.PC), the names of the persons who identified the dead body, Anwari Bibi, are Muhammad Rasheed, alias Nanna (PW-1), and Abdul Majeed, son of Muhammad Shareef. But Abid Majeed (PW-10) deposed during cross-examination that:-

“I identified the dead body on its return to home after postmortem, again said I had come with the dead body of autopsy at DHQ Hospital, Jhang where I identified the dead body. ----- My father Abdul Majeed went to THQ, Ahmadpur Sial for post-mortem from there he contacted me and asked me to accompany the dead body to DHQ Hospital, Jhang for autopsy due to he was not feeling well.----- My father contacted me telephonically at about 12:30/1:00 p.m. I was there at place of occurrence at that time.”

Zafar Abbas S.I/S.H.O (PW-13)-the investigating officer deposed during examination-in-chief that after postmortem examination upon the dead body, Naseem Abbas 931/C (PW-7) handed over the last worn clothes of the deceased. After that, he (PW-13) recorded statements under section 161 of the Cr.P.C. of Muhammad Rasheed alias Nanna (PW-1), and Abdul Majeed, son of Muhammad Shareef (PW not appeared) and Abid Majeed (PW-10). Dr. Nuzhat Asad (PW-2), who conducted the postmortem examination on the dead body of Anwari Bibi, deposed during her examination-in-chief that the dead body was brought by Nasreen Akhtar 1743/LC (PW-5) and was identified by Muhammad Rasheed (PW-1) and Abid Majeed (PW-10). Perusal of the postmortem report (Exh.PA) reveals that the column relating to the “dead body brought by” and the Provisional report (related to the police officers to whom the dead body, last worn clothes, etc were mentioned) were left blank. As per the postmortem report (Exh.PA), the time of death was mentioned as 14.11.2019 at 10:35 a.m., the dead body was received in the dead house at 06:15 p.m., on 14.11.2019,

complete documents were received at 06:20 p.m., on 14.11.2019, and the autopsy was conducted at 06:30 p.m., on 14.11.2019. During cross-examination, Dr. Nuzhat Asad (PW-2) stated that:-

“I received the dead body for autopsy on 14.11.2019 at about 06:15 p.m. I conducted the postmortem on the dead body at 06:30 p.m. without any delay on my part.”

As per the deposition of Dr. Nuzhat Asad (PW-2) and perusal of the postmortem report (Exh.PA), the police documents were received at 06:20 p.m. on 14.11.2019. Till then, a copy of the FIR (Exh.PE) was not produced before the doctor, who only endorsed the injury statement (Exh.PB) and the inquest report (Exh.PC) by signing them. Although FIR (Exh. PE) was chalked out at 11:05 a.m. on 14.11.2019. Nasreen Akhtar 1743/LC deposed during cross-examination that:-

“Zafar Abbas SI called me at Police station on 14.11.2019 at about 10:00 am. At that time, the dead body was present at police station Ahmadpur Sial from where the I.O. handed over to me the same for autopsy. The doctor issued a reference slip from THQ Hospital Ahmadpur Sial to DHQ Hospital, Jhang. About 2/3 hours consumed to reach from Ahmadpur Sial to District Jhang. We left THQ Hospital Ahmadpur Sial at about 4:00 pm.”

As per the deposition of Nasreen Akhtar 1743/LC (PW-5), the dead body was handed over to her at the police station. Whereas Zafar Abbas SI/S.H.O (PW-13), the investigating officer deposed during cross-examination that:-

“Lady constable was not with me, anyhow, she was called there at the spot. Dead body remained at the spot for about two hours. ----- did not record the statements of Nadia Bibi and Shamshad Bibi.----- The dead body was transferred to THQ, Hospital Ahmadpur Sial for autopsy. Nasreen lady constable reached at place of occurrence after 15/20 minutes and prior to transportation of the dead body. THQ Hospital Ahmadpur Sial is at a distance of one furlong from place of occurrence. Ahmadpur Sial is at a distance of 125/150 kilometer from District Jhang. It takes

2- 2 ½-3 hours while traveling from Ahmadpur Sial to Jhang. I prepared injury statement Exh.PB. The constable who took the dead body to THQ, Hospital Ahmadpur Sial got referred the same to DHQ Hospital, Jhang. The dead body reached at DHQ Hospital, Jhang at 5:55 p.m.”

Zafar Abbas S.I/S.H.O (PW-13)-the investigating officer, admitted during cross-examination that:-

“I have recorded in my case diary that the witnesses of identification of dead body, were not appearing despite change of date.”

In addition, on perusal of the injury statement (Exh.PB), it reveals that the dead body was referred from THQ Hospital Ahmad Pur Sial to DHQ Hospital Jhang for post-mortem examination. However, to substantiate the plea that the dead body was referred from THQ Hospital Ahmad Pur Sial to DHQ Hospital Jhang and received there, the prosecution has not produced any evidence in this regard. Zafar Abbas SI/SHO (PW-13), the investigating officer deposed during cross-examination that:-

“It is not in my knowledge that dead body was transported from THQ, Hospital Ahmadpur Sial to DHQ Hospital, Jhang at 12:30 PM.”

The prosecution has failed to bring material evidence on the record about the referral of the dead body from THQ Hospital Ahmad Pur Sial to THQ Hospital, Jhang. There is no plausible explanation as to why the postmortem of the dead body was delayed. No doubt, delay in postmortem alone is not fatal to the prosecution's case, but when this court considered it with the other evidence available on the record along with the postmortem report (Ex.PA), they do influence the mind of the Court and leave the impression that there had been some wrangling about the time of registration of the criminal case. All these circumstances, in my view, cast a serious doubt on the testimonies of Abdul Kareem (PW-9), the complainant, Abid Majeed (PW-10), and Nadia Bibi (PW-11). So, ocular account is neither trustworthy nor truthful, hence not reliable.

It is also an admitted fact that the appellant (Muhammad Imran Sajid) divorced Nadia Bibi (PW-11). Abdul Kareem (PW-9)-the complainant admitted during cross-examination that:-

“I never saw that the accused made any effort for reconciliation with Mst. Nadia Bibi PW and I never saw him visiting the house of Mst. Anwari Bibi deceased.”

Abid Majeed (PW-10) deposed during cross-examination that:-

“I never saw the accused while coming to Mst. Nadia or Anwari Bibi for reconciliation. PW volunteered that Anwari Bibi used to tell us about his coming in this regard.”

Zafar Abbas SI/SHO (PW-13), the investigating officer deposed during cross-examination that:-

“It came into my knowledge during interrogation that prior to occurrence, the accused once visited the house of deceased for having compromise with Nadia Bibi, his ex-wife but same was not remained fruitful. The exact date of above said visit of accused was not told by anyone. No any PW mentioned in their statements about the above stated visit of the accused.”

Contrary to the above, Nadia Bibi (PW-11) deposed during cross-examination that:-

“The accused divorced me when we were residing in Multan. Thereafter, the accused did not come to my mother’s house. After divorce, mother of the accused did not contact me or my mother.”

The aforesaid depositions of the prosecution witnesses cast doubt on the motive for the occurrence.

11. As far as recovery of the weapon of offence, i.e., pistol 30-bore (P-6), two Magazines (P-7/1-2) and three live cartridges (P-8/1-3) on the pointing of Muhammad Imran Sajid (the appellant), on 28.11.2019, and positive report of Punjab Forensic Science Agency (Exh.PU) are concerned, as per the prosecution case, the appellant, Muhammad Imran Sajid, was

arrested on 24.11.2019. Manzoor Hussain 426/HC (PW-4), moharrar malkhana deposed during examination-in-chief that:-

**“On 14.11.2019, I was posted as Moharrar at P.S. Ahmadpur Sial District Jhang.-----
On the same day, Zafar Abbas SI handed over to me two sealed parcels said to contain blood stained cotton and crime empty of pistol 30-bore for keeping it the same into Malkhana and its onward transmission to the office of Punjab Forensic Science Agency, Lahore which I kept in the Malkhana. On 19.11.2019, I handed over the above said sealed parcels to Zafar Abbas SI after issuing road certificate No.631/21 who deposited the same to the office of Punjab Forensic Science Agency, Lahore, intact.”**

Contrary to the deposition of Manzoor Hussain 426/HC (PW-4), Moharrar Malkhana, Zafer Abbas S.I. (PW-13), investigating officer, deposed during examination-in-chief that he received a parcel containing an empty 30-bore pistol for deposit with the Punjab Forensic Agency, Lahore, on 21.11.2019. Zafer Abbas S.I. (PW-13), the investigating officer, deposed as under:-

“On 21.11.2019, I took two parcels from the Moharrar, that of blood stained cotton and empty of pistol 30 bofre for their deposit in PFSA. On the same day, I deposited the above said parcels in Punjab Forensic Science Agency, Lahore.”

At trial, the prosecution had to establish by cogent evidence that the parcel containing the empty cartridge (P-5) was kept in safe custody. There is no explanation for this failure to establish safe custody of the parcel containing the cartridge (P-5) of the 30-bore pistol. Tampering with the cartridge parcel (P-5) of the 30-bore pistol cannot be ruled out, as Zafar Abbas S.I. (PW-13), the investigating officer, did not depose to having received the parcel on 19.11.2019. In the considered opinion of this Court, the aforesaid inconsistencies and contradictions, considered cumulatively, do lead to an irresistible inference that the prosecution has not been able to prove safe custody of the recovered substance through material and cogent evidence. Upon the disclosure of the appellant, Muhammad Imran Sajid, on 28.11.2019, pistol 30-bore (P-6), two Magazines (P-7/1-2) and three live

cartridges (P-8/1-3) were recovered by Muhammad Nawaz S.I (PW-12), the investigating officer, who secured it into possession through a recovery memo (Exh.PM) and did not hand over to the moharrar for keeping it in safe custody in the malkhana. Mumtaz Ahmad 1760/MHC (PW-8) deposed during examination-in-chief that:-

“On 28.11.2019, I was posted at P.S. Ahmad Pur Sail as Moharrar. Muhammad Nawaz SI handed over to me a sealed parcel, said to contain pistol 30 bore, for issuance of road, on the same day, I issued road No.650/21 and handed over the same to Muhammad Nawaz SI for depositing the parcel for chemical examination in Punjab Forensic Science Agency, Lahore.”

Mumtaz Ahmad 1760/MHC (PW-8) did not state a single word indicating that the 30-bore pistol (Exh.P-6) was handed over to him for safe custody in the malkhana. Muhammad Nawaz, SI (PW-12), the investigating officer, stated that on the same day, i.e., 28.11.2019, he handed over a parcel containing a 30-bore pistol to the moharrar. Muhammad Nawaz, SI (PW-12), deposed during examination-in-chief that:

“On 29.11.2019, I went to Punjab Forensic Science Agency, Lahore for examination of the pistol, on the same day, examination was conducted and parcel was returned to me. I recorded statement of Moharrar on 29.11.2019 regarding deposit of parcel to him and its handing over to me for Punjab Forensic Science Agency, Lahore.”

Manzoor Hussain 426/HC (PW-4) did not utter a single word that Muhammad Nawaz, SI (PW-12), on return from the office of the Punjab Forensic Science Agency, re-submitted a parcel containing a 30-bore pistol. It was also mentioned in the report of Punjab Forensic Agency, Lahore (Exh.PT) that:-

“The item(s) listed in this report will be returned to the submitting agency.”

In addition, the Firearms and Toolmarks Examination Report (Exh.PT) was initially issued by the Punjab Forensic Science Agency,

stating that “the item P-1 pistol was examined and found to be in mechanical operating condition”. Subsequently, again on the orders of the Sessions Judge, Jhang, Mushtaq Hussain S.I. (PW-14), deposited the pistol (P-6) in the office of the Punjab Forensic Science Agency, Lahore, on 26.03.2021, whereupon a positive report (Exh.PU) of the Punjab Forensic Science Agency, Lahore, was received. Mushtaq Hussain S.I. (PW-14) deposed during cross-examination that:-

“The issuing date of Road Certificate is 25.03.2021. I took the pistol from Sadar Malkhana Jhang. Moharrar of Sadar Malkhana did not issue any Road Certificate. PW volunteered that concerned Moharrar received my signatures on the relevant register in this regard. I had not taken any empty with me alongwith the pistol to the office of Punjab Forensic Science Agency, Lahore. The empty P-5 was submitted by Zafar Abbas SI on 21.11.2019. PW volunteered that on 21.11.2019, I was not posted at P.S. Ahmad Pur Sial. I do not know as to if above said Zafar Abbas SI had resubmitted the empty P-5 in Malkhana Sadar Jhang after its examination by PFSA, Lahore. It is not in my knowledge that on 29.11.2019 after analysis of pistol P-6, Muhammad Nawaz SI resubmitted the pistol in PFSA, Lahore on the same day. It is also not in my knowledge that pistol had already been analyzed by PFSA Lahore on 29.11.2019. PW volunteered that in those days, I was not posted in Police Station Ahmad Pur Sial.”

According to the deposition of Mushtaq Hussain, S.I. (PW-14), he received a parcel containing a pistol from the Moharrar of Saddar Malkhana. However, the prosecution has failed to substantiate when and by whom the parcels containing the pistol (P-6) and cartridge (P-5) were received from the office of the Punjab Forensic Science Agency, Lahore, and to whom the parcels were handed over. It was also mentioned in the report of Punjab Forensic Agency, Lahore (Exh.PU) that:-

“Disposition of Evidence:
The case property/evidence may be received by the responsible official of your office on submitting authorization letter/docket within 15

days after the receipt of this report.
Ammunition components should be maintained
for possible future examinations.”

The prosecution has also failed to produce the Moharrar of Saddar Malkhana, who handed it over to Mushtaq Hussain, S.I. (PW-14), casting doubt on the pistol's and cartridge's safe custody. Therefore, the recovery of the pistol (P-6) and the positive report (Exh.PU) are of no consequence. As for the motive, the trial court has already disbelieved it.

12. As it is difficult to rely upon the testimonies of Abdul Kareem (PW-9)-the complainant, Abid Majeed (PW-10) and Nadia Bibi (PW-11) and for other reasons enumerated hereinbefore, I am persuaded to hold that the prosecution had not been able to prove its case against the appellant beyond any shadow of doubt, as there were many dents in the prosecution's story. As such, the conviction and sentence recorded by the learned trial court cannot be sustained. Reliance has been placed on the case reported as **“Muhammad Akram v. The State”** (2009 SCMR 230) wherein the Hon’ble Supreme Court of Pakistan held that:-

“The nutshell of the whole discussion is that the prosecution case is not free from doubt. It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

13. I, therefore, accept in toto Criminal Appeal No. 43135-J of 2021, filed by the appellant, Muhammad Imran Sajid, son of Khadim Hussain, as a result whereof the conviction and sentence recorded by the trial court vide judgment dated 18.06.2021 are set aside. The appellant, Muhammad Imran Sajid, son of Khadim Hussain, is ordered to be acquitted

of the charge in case F.I.R. No. 340 of 2019, dated 14.11.2019, for the offence under Sections 302 PPC, registered at Police Station Ahmad Pur Sial, District Jhang. The appellant, Muhammad Imran Sajid, son of Khadim Hussain, is directed to be released forthwith, if not required in any other case.

14. So far as Criminal Revision No. 58952 of 2021, filed by the complainant for enhancement of the sentence of the appellant/respondent No. 1, Muhammad Imran Sajid, son of Khadim Hussain, awarded by the trial court, is concerned, for the reasons aforesaid, the revision is devoid of any legal force and is accordingly dismissed.

(AALIA NEELUM)
CHIEF JUSTICE

Approved for reporting

CHIEF JUSTICE

*This judgment was dictated,
pronounced on 03.06.2026,
and signed after completion
on 08.06.2026.*

Ikram*